

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 7, 2026
8:30 a.m./1:30 p.m.

1. ANDREW AULT V. SHAINA AULT

25FL0137

On February 9, 2026, Respondent filed a Request for Order (RFO) seeking visitation orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on March 12, 2026, and a review hearing was set for the present date. The RFO was served on February 24th along with a document identified as “mediation questionnaire.” There is no Proof of Service for the CCRC referral, the Notice of Tentative Ruling and the blank FL-320.

Despite the defect in service, Petitioner filed and served his Responsive Declaration to Request for Order on March 5, 2026.

The parties attended CCRC as scheduled and were able to reach some agreements. A report containing those agreements, along with additional recommendations, was prepared on April 20, 2026. It was mailed to the parties on April 21st.

Respondent filed her RFO but failed to make any requests therein. The court is proceeding with the RFO on the merits despite Respondent’s failure to fully complete the RFO only because the parties both appeared at and participated in CCRC. That said, Respondent is admonished that if she files another blank RFO in the future it will be dropped from calendar.

After reviewing the CCRC report, the court finds the agreements and recommendations contained therein to be in the best interests of the minor. They are hereby adopted as the orders of the court.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #1: THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE APRIL 20, 2026 CCRC REPORT ARE FOUND TO BE IN THE BEST INTERESTS OF THE MINOR AND ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT’S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

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NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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2. CHEYENE BONARI V. JOHN HARTSOUGH

24FL0767

Petitioner filed a Request for Order (RFO) on February 6, 2026, seeking a modification of child custody and parenting plan orders. The parties were not referred to Child Custody Recommending Counseling (CCRC) as they had attended within the prior six months. Respondent was served with only the RFO on February 6, 2026. There is no Proof of Service showing the Department of Child Support Services was served.

Petitioner filed an ex parte application for emergency custody orders on March 19, 2026. Respondent filed a Responsive Declaration on March 23 and again on March 24th. The court granted the ex parte request in part on March 24, 2026 and referred the parties to an emergency set CCRC appointment on April 7, 2026 and a review hearing set for May 7, 2026. Respondent was served on March 24, 2026. There is no Proof of Service showing the Department of Child Support Services was served.

Both parties attended CCRC on April 7, 2026. The parties were unable to reach any agreements. A report with recommendations was filed with the court on April 28, 2026, and mailed to the parties on April 29th.

Respondent filed a Responsive Declaration on April 29, 2026. There is no Proof of Service for this document, therefore, the court cannot consider it. Additionally, the court finds this to be late filed. Civil Procedure section 1005(b) states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, “[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12.” Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made April 24th the last day for filing a response to the RFO. Therefore, the declaration is late filed and has not been considered by the court.

Parties are ordered to appear for the hearing.

TENTATIVE RULING #2: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.